

25STCV27851 25STCV27851

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Case Number: 25STCV27851 Hearing Date: July 20, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Sandra Turcios

, et al.;

Plaintiffs,

vs.

Progressive Produce LLC dba pATHFINDER IOGISTICS

, et al.,

Defendants.

Case No.:

25STCV27851

Hearing Date:

July 20, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

DEFENDANTS'
MOTION TO COMPEL ARBITRATION

MOVING PARTIES: Defendants Progressive Produce LLC;
Cesar Arreola; Jesus Escobar; Alejandro Gonzalez, and Alejandra Villacres

RESPONDING
PARTY: Plaintiff Sandra Turcios

Motion to Compel
Arbitration

The court considered the moving,
opposition, and reply papers filed in connection with this motion.

REQUESTS
FOR JUDICIAL NOTICE

Defendants
request that the Court take judicial notice of certain documents. The court
denies Defendants' requests because they are immaterial to the court's ruling. (Gbur v. Cohen (1979) 93 Cal.App.3d
296, 301 ("[J]udicial notice . . . is always confined to those matters which
are relevant to the issue at hand.").)

DISCUSSION

Defendants Progressive
Produce LLC ("Progressive"); Cesar Arreola; Jesus Escobar; Alejandro Gonzalez,
and Alejandra Villacres (collectively "Defendants") move the court for an order
(1) compelling plaintiff Sandra Turcios ("Plaintiff") to submit her claims alleged
in the Complaint to binding arbitration, and (2) staying this action pending
completion of arbitration.

1. Applicability of Federal Arbitration Act

“The party asserting the FAA applies to an agreement has ‘the burden to demonstrate FAA coverage by declarations and other evidence.’” (Evenskaas v. California Transit, Inc. (2022) 81 Cal.App.5th 285, 292 [internal citation omitted].) “[W]hen an agreement provides that its ‘enforcement’ shall be governed by the FAA, the FAA governs a party’s motion to compel arbitration[.]” (Victrola 89, LLC v. Jaman Properties 8 LLC (2020) 46 Cal.App.5th 337, 346.)

The court finds that Defendants have met their burden to show that the Federal Arbitration Act (9 U.S.C. § 1 et seq.) (the “FAA”) governs this motion because the arbitration agreement that is the subject of this motion states that, “[a]ny arbitration hereunder will be pursuant to the Federal Arbitration Act (the ‘FAA’) and California law, unless California law conflicts with the FAA in which case the FAA shall govern.” (Lord Decl., Ex. 1 § V.)

2. Existence of Agreement to Arbitrate

““The party seeking to compel arbitration bears the burden of proving the existence of an arbitration agreement, while the party opposing the petition bears the burden of establishing a defense to the agreement’s enforcement.”” (Beco v. Fast Auto Loans (2022) 86 Cal.App.5th 292, 302.)

To determine the existence of an arbitration agreement, the court uses “a three-step burden-shifting process.”

(Iyere v. Wise Auto Group (2023) 87 Cal.App.5th 747, 755.) “The arbitration proponent must first recite verbatim, or provide a copy of, the alleged agreement.” [Citations.] A movant can bear this initial burden ‘by attaching a copy of the arbitration agreement purportedly bearing the opposing party’s signature.’” (Ibid. [internal citations omitted].) “If the movant bears its initial burden, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement’s existence” (Ibid.) If the opposing party meets its burden to “submit sufficient evidence to create a factual

dispute”

as to the existence of the agreement, the burden shifts back to the arbitration proponent, who retains the ultimate burden of proving its existence by a preponderance of the evidence.¿

(Ibid.; Gamboa v. Northeast Community Clinic (2021) 72

Cal.App.5th 158, 165-166.)¿¿¿

First, the court

finds that Defendants have met their burden to provide a copy of an alleged agreement to arbitrate this controversy.

Defendants have

submitted a copy of an unsigned “Mutual Agreement to Arbitrate Claims” (the “Arbitration Agreement”) which states that the employee and Progressive agree that any controversy, dispute, or claim between the employee and Progressive or any of its directors, officers, shareholders, employees, agents, or representatives shall be settled by binding arbitration at the request of either party. (Lord

Decl. Exh. 1 § I.) Defendants have also

submitted a separate record of Plaintiff’s electronic signature of that agreement dated December 16, 2019. (Lord Decl. Exh. 2.) Plaintiff does not deny signing the Arbitration Agreement.

The court further

finds that Defendants have shown that the Arbitration Agreement encompasses Plaintiff’s claims because it requires arbitration of any claim between Plaintiff and Progressive or its employees. (Lord Decl. Exh. 1 § I.) Plaintiff also does not deny that the Arbitration Agreement encompasses her claims.

For the reasons set forth above, the court

finds that Defendants have proven that an agreement to arbitrate this controversy exists.

3. The Ending Forced Arbitration of

Sexual Assault and Sexual Harassment Act (EFAA)

Plaintiff

challenges the Arbitration Agreement as unenforceable under the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 (EFAA; 9 U.S.C. §§ 401-402).

Pursuant to 9

United States Code section 402(a), “at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute . . . , no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute.” (9 U.S.C. § 402, subd. (a).) When application of the EFAA is based on a “sexual harassment dispute,” courts have construed this language as requiring the plaintiff to demonstrate that the pleadings are sufficient to state a claim for a sexual harassment. (See *Liu v. Miniso Depot CA, Inc.* (2024) 105 Cal.App.5th 791, 799 fn. 2 [noting federal district court decisions requiring sexual harassment claims be capable of surviving a motion to dismiss under Federal Rule of Civil Procedure 12(b)(6)]; see also *Quilala v. Securitas Security Services USA, Inc.* (2025) 117 Cal.App.5th 75, 86 [analyzing whether plaintiff’s allegations are sufficient to state a cause of action for sexual harassment].)

The court finds

that Plaintiff has adequately alleged a claim for sexual harassment such that the EFAA applies.

First, claims for

sexual harassment based on sex, gender, and pregnancy, as alleged here, fall within the scope of the EFAA. “The term ‘sexual harassment dispute’ means a dispute relating to conduct that is alleged to constitute sexual harassment under applicable Federal, Tribal, or State law.” (9 U.S.C. § 401(4).) For the purposes of Government Code section 12940, subdivision (j), “‘harassment’ because of sex includes sexual harassment, gender harassment, and harassment based on pregnancy, childbirth, or related medical conditions. Sexually harassing conduct need not be motivated by sexual desire.” (Gov. Code, § 12940, subd. (j)(4)(C).) Thus, harassment based on pregnancy is sexual harassment under California state law and therefore qualifies as a “sexual harassment dispute” under the EFAA.

Second,

Plaintiff’s allegations in her Complaint are sufficient to state a cause of action for sexual harassment under FEHA.

“[T]he

prohibition against sexual harassment includes protection from a broad range of conduct, [including] the creation of a work environment that is hostile or abusive on the basis of sex.” (Kruitbosch v. Bakersfield Recovery Services, Inc. (2025) 114 Cal.App.5th 200, 211 [internal quotation marks and citation omitted].) “To prevail on a claim of hostile work environment under FEHA, an employee must show he or she was subjected to harassing conduct that was (1) unwelcome, (2) because of sex or gender, and (3) sufficiently severe or pervasive to alter the conditions of her employment and create an abusive work environment.” (Wawrzenski v. United Airlines, Inc. (2024) 106 Cal.App.5th 663, 692.) “The working environment must be evaluated in light of the totality of the circumstances. These may include the frequency of the discriminatory conduct; its severity; whether it is physically threatening or humiliating, or a mere offensive utterance; and whether it unreasonably interferes with an employee’s work performance. The required level of severity or seriousness varies inversely with the pervasiveness or frequency of the conduct.” (Bailey v. San Francisco Dist. Attorney’s Office (2024) 16 Cal.5th 611, 628.)

Here, Plaintiff

alleges a pattern of hostility and abuse based on her gender and pregnancy of sufficient frequency to constitute pervasive harassment. Plaintiff alleges that a driver for Progressive routinely made degrading comments to her about her sex and gender, calling her “an ignorant female employee” and telling her to “go back to [her] desk,” and that Plaintiff’s supervisor refused to act on her reports of these incidents. (Complaint ¶ 14(a)-(b).) Plaintiff also alleges that her managers disclosed her pregnancy to other employees contrary to her express wishes (Complaint ¶ 14(c)), attempted to assign her to an alternative schedule which she could not meet due to her request for light-duty work for her pregnancy (Complaint ¶ 14(d)), refused to allow her the ability to take lactation breaks (Complaint ¶ 14(f)), and denied her requests to take additional baby bonding leave (Complaint ¶ 14(g)-(h)). Plaintiff further alleges that Progressive’s Human Resources division refused to take action to discipline employees who were openly insubordinate to her. (Complaint ¶ 14(h)-(k).) Taken collectively, these are allegations of pervasive hostility to Plaintiff on the basis of her gender and her pregnancy. Because of the frequency and number of these incidents, the threshold of severity to allege harassment is reduced, and Plaintiff’s allegations meet that reduced threshold. The nature of certain allegations as “personnel management actions” is no barrier to the court’s finding, because managerial actions can constitute the means of conveyance of a hostile or offensive message based on a protected characteristic. (Roby v. McKesson Corp. (2009) 47 Cal.4th 686, 708.) It is this message that constitutes actionable harassment. (Ibid.)

For

the reasons stated above, the Court finds that the EFAA applies to this action.

Because Plaintiff has exercised her option under the EFAA to refuse arbitration, the court denies Defendants' motion to compel arbitration.

ORDER

The court denies defendants

Progressive Produce LLC, Cesar Arreola, Jesus Escobar, Alejandro Gonzalez, and Alejandra Villacres's motion to compel arbitration and stay the action.

The court orders plaintiff

Sandra Turcios to give notice of this ruling.

IT IS SO ORDERED.

DATED: July 20, 2026

Robert B. Broadbelt III

Judge of the Superior Court